

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 776

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO NEWBORN SAFETY REVIEW; PROVIDING LEGISLATIVE INTENT; AMENDING CHAPTER 16, TITLE 16, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 16-1650, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING NEWBORN SAFETY REVIEW; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE INTENT. It is the intent of the Legislature to protect infants and children from abuse, neglect, and sexual exploitation by requiring an expedited child protection safety review of children less than one year of age when parents, guardians, or legal custodians have a history of child abuse, sexual offenses, or prior termination of parental rights due to abuse or neglect. Infants are uniquely vulnerable and may suffer irreparable harm when safety concerns are not identified and addressed immediately. It is the intent of the Legislature to ensure timely safety verification and appropriate planning for children born into high-risk circumstances.

SECTION 2. That Chapter 16, Title 16, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 16-1650, Idaho Code, and to read as follows:

16-1650. NEWBORN SAFETY REVIEW. (1) Any report made to the department by a mandatory reporter pursuant to section 16-1605, Idaho Code, alleging a parent, guardian, or legal custodian is a caregiver to a child that is less than one (1) year of age and has a risk factor described in subsection (2) of this section, the department shall verify the reported risk factor within twelve (12) hours of receiving the report. If the reported risk factor is verified, the department shall initiate a priority I response, as defined by the department, and shall complete a full written safety assessment.

(2) Risk factors that require action by the department pursuant to subsection (1) of this section are as follows:

(a) A parent, guardian, or legal custodian's identifying information appears in the department's child protection central registry going back no more than ten (10) years;

(b) A parent, guardian, or legal custodian has been convicted of injury to a child pursuant to section 18-1501, Idaho Code;

(c) A parent, guardian, or legal custodian's parental rights were terminated in a proceeding pursuant to this chapter; or

(d) A parent, guardian, or legal custodian's child was born with neonatal abstinence syndrome.

(3) For the purposes of this section, "verify" means use of the department's internal records to substantiate termination of parental rights and, when possible, the use of official, public-facing repositories of Idaho

1 criminal or medical records in order to confirm the existence of a reported
2 risk factor.

3 (4) The department's safety assessment shall include:

4 (a) The current compliance of each parent, guardian, or legal custodian
5 with court-ordered conditions, treatment, or supervision related to a
6 prior offense, insofar as can be determined;

7 (b) The child's living environment with the parent, guardian, legal
8 custodian, or caregiver and other household members; and

9 (c) A summary of the department's prior investigation of allegations
10 of child abuse, abandonment, or neglect pertaining to members of the
11 household and any services provided to members of the household by the
12 division for youth safety and permanency at the department.

13 (5) When a law enforcement agency makes a report to the department pur-
14 suant to section 16-1605, Idaho Code, such report shall include any known or
15 reported risk factors described in subsection (2) of this section.

16 (6) Nothing in this section shall be construed to create a presumption
17 of abuse or neglect based solely on a medical condition, diagnosis, or indi-
18 cator.

19 (7) If the department concludes that verification of a risk factor
20 described in subsection (2) of this section cannot be accomplished within
21 twelve (12) hours or if the department concludes that public safety would
22 be better served by immediately escalating the response, the department may
23 initiate a priority I response instead of making continued efforts to ver-
24 ify the risk factors and shall prepare a safety assessment as set forth in
25 subsection (4) of this section, notwithstanding the lack of a verified risk
26 factor.

27 SECTION 3. An emergency existing therefor, which emergency is hereby
28 declared to exist, this act shall be in full force and effect on and after its
29 passage and approval.